

The Case Study Teaching Method

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The Case Study Teaching Method

It is easy to get confused between the

case study method

case method

, particularly as it applies to legal education. The case method in legal education was invented by Christopher Columbus Langdell, Dean of Harvard Law School from 1870 to 1895. Langdell conceived of a way to systematize and simplify legal education by focusing on previous case law that furthered principles or doctrines. To that end, Langdell wrote the first casebook, entitled

A Selection of Cases on the Law of Contracts

, a collection of settled cases that would illuminate the current state of contract law.

Students read the cases and came prepared to analyze them during Socratic question-and-answer sessions in class.

Case Study Method:

Uses a narrative of a legal dilemma to exemplify principles of law

Employs skill-building as well as discussion and teamwork between participants

Analyzes the dilemma as it unfolds

Case Method:

Uses a court decision to exemplify principles of law

Employs “hub-and-spoke” discussion between professor and student, otherwise known as the Socratic method

Analyzes the dilemma after it has been resolved

The Harvard Business School case study approach grew out of the Langdellian method. But instead of using established case law, business professors chose real-life examples from the business world to highlight and analyze business principles. HBS-style case studies typically consist of a short narrative (less than 25 pages), told from the point of view of a manager or business leader embroiled in a dilemma. Case studies provide readers with an overview of the main issue; background on the institution, industry, and individuals involved; and the events that led to the problem or decision at hand. Cases are based on interviews or public sources; sometimes, case studies are disguised versions of actual events or composites based on the faculty authors' experience and knowledge of the subject. Cases are used to illustrate a particular set of learning objectives; as in real life, rarely are there precise answers to the dilemma at hand.

Case studies:

Engage readers in active learning

Can involve participant-led presentations, exercises, role plays, debates, guest speakers, and informational lectures

Are appropriate for undergraduate students, graduate students, continuing legal education, executive education, and professional development

Typically require at least one class session to fully implement, with some multi-part or multi-player role plays requiring more time

May incorporate additional readings or multimedia

Teaching manuals include:

the basic premise of the case study

how a case study can be used within a course

learning objectives

assignment questions

a typical class discussion flow

key takeaways

additional information such as board plans, informational slides, exercises, volunteer instructions, and updates or epilogues to the case study

Participants:

Are put squarely in the shoes of real people wrestling with real dilemmas

Argue and defend their advice for the protagonist

Learn how to approach and solve problems

Interact with their peers through debate, presentations, and ad hoc role plays

Instructors:

May assign questions prior to class to focus participants on particular issues

Identify participants who hold opposing views and ask questions to stimulate debate

Assign participants to stakeholder groups with different points of view of the situation

Encourage input from all sides until the participants uncover most or all of the learning points

Lead participants to an “aha” moment during which conventional wisdom is trumped by deeper, more seasoned insights

Our suite of

<https://casestudies.law.harvard.edu/free-1/>

materials offers a great introduction to the case study method. We also offer review copies of our products free of charge to educators and staff at degree-granting institutions.

For more information on the case study teaching method, see:

Martha Minow and Todd Rakoff:

A Case for Another Case Method

http://heinonline.org/HOL/Page?handle=hein.journals/vanlr60&div=27&g_sent=1&collection=journals

HLS Case Studies Blog:

Legal Education's 9 Big Ideas

<https://blogs.law.harvard.edu/hlscasestudies/2013/07/23/summer-reading-legal-educations-9-big-ideas-part-3/>

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Harvard Business School Publishing

<http://hbsp.harvard.edu/>

HLS Executive Education

<https://execed.law.harvard.edu/>

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